

26STCV01974 26STCV01974

County: los-angeles

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-06-26

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Case Number: 26STCV01974 Hearing Date: June 26, 2026 Dept: 9

The Court hereby

distributes a tentative Minute Order for the June 26, 2026 ISC. The parties are welcome to provide input and propose modification(s) to any aspect of the minute order at the Initial Status Conference. If all parties submit on the tentative minute order prior to the commencement of the June 26, 2026 ISC, the Court will adopt the tentative minute order, and the parties need not appear. However, if there is any matter that any party would like to discuss, including any proposed change to this tentative minute order, that party should not submit on this tentative but instead appear at the ISC to raise the issue.

To avoid a failure to appear, please make sure to check in with Department 9 court staff and wait for the case to be called unless you receive notification that all parties have submitted on the tentative minute order.

25STCV32902

[TENTATIVE] MINUTE
ORDER

Plaintiff has

filed proof of service of the operative Summons and First Amended Complaint as to certain defendants who have not responded to service of the operative Summons and First Amended Complaint, including DIVINE FUTURES, INC..

If any Defendant

fails to timely respond to the service of the operative Summons and First Amended Complaint by filing a Notice of Appearance, Plaintiff must pursue that Defendant's default with diligence.

The Court reminds

the parties that ultimately, the Court may not enter default judgment in an amount exceeding the amount demanded in the Complaint. (CCP 585(b).)

The Court may not grant relief not demanded in the complaint by default judgment even though that relief otherwise would have been proper. (CCP § 580(a); *Airs Aromatics, LLC v. CBL Data Recovery Technologies, Inc.*

(2018) 23 Cal.App.5th 1013, 1018 (default judgment for sum in excess of that demanded in complaint is void). “It is

fundamental to the concept of due process that a defendant be given notice of the existence of a lawsuit and notice of the specific relief which is sought in the complaint served upon him.” (*Marriage of Lippel* (1990) 51 Cal.3d 1160, 1166 [emphasis added].) Accordingly,

prior to seeking any Defendant's default, Plaintiff may wish to review the operative Complaint to determine whether the operative Complaint gives notice of the amount of damages that Plaintiff seeks to recover in the event of a default judgment; if the operative Complaint fails to do so, it may be futile for Plaintiff to seek entry of Defendant's default without first amending the

Complaint to clearly state and give notice of the amount of damages that

Plaintiff is seeking to recover in the event of a default judgment. In the event that Plaintiff wishes to amend the Complaint for this purpose, the Court hereby lifts the stay to grant Plaintiff leave to file an amended complaint. If

Defendant again fails to respond upon being served with the amended complaint,

a request for entry of Defendant's default on the Amended Complaint may then

possibly lead to a request for entry of default judgment in an amount equal to

or less than that stated in the Amended Complaint. To be clear, the Court is not ordering

Plaintiff to amend the operative Complaint; if, after considering the above,

Plaintiff voluntarily wishes to amend the operative Complaint to give notice of

the amount of damages that Plaintiff seeks to recover in the event of a default judgment, the Court hereby grants leave for Plaintiff to do so.

By no later than July

27, 2026, Plaintiff's Counsel must file either a request for entry of DIVINE

FUTURES, INC.'s default or a declaration explaining the failure to seek and

obtain DIVINE FUTURES, INC.'s default, setting forth any and all efforts

undertaken to obtain DIVINE FUTURES, INC.'s default, and explaining why

sanctions (including monetary sanctions of at least \$1,000) should not be

imposed for failure to timely seek DIVINE FUTURES, INC.'s default, in

compliance with California Rules of Court, Rule 3.720. Failure to comply by July 27, 2026 may

result in the Court setting an OSC re sanctions.

The previously
imposed stay on discovery remains in effect.

The Initial Status

Conference is continued to August 24, 2026 at 8:30 am. The parties are to file a Joint Initial Status Conference Report by no later than August 17, 2026 in compliance with the Court's Initial Status Conference order.

Plaintiff's

Counsel is ordered to give notice to all other parties and file proof of service of such.